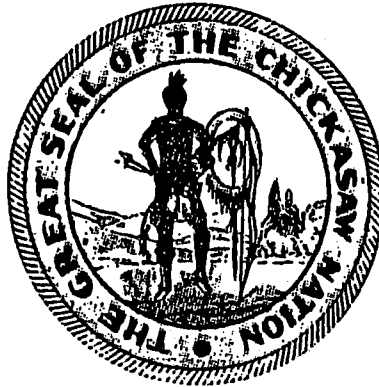


9th LEGISLATURE



T.L. 9-001

To establish a system for the review of annual salaries of elected officials of the Chickasaw Nation and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

October 18, 1991

Mrs. 'Rena DUNCAN, Tim COLBERT, and Lisa SHEPHARD introduced the following bill, which was referred to the Legislative Committee.

A BILL

To establish procedures for the review of the annual salaries of elected tribal officials, and for other purposes.

Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Salary Review Act of 1991."

Sec. 2. The Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation in accordance with Article VII, Section 11 of the Constitution of the Chickasaw Nation as amended August 22, 1990.

SEC. 3. For the purpose of this Act:

(1) "The Chickasaw Nation" means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, being duly recognized by the Secretary of the

United States Department of the Interior, as a self-governing, sovereign government;

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the voters of the Chickasaw Nation on August 27, 1983;

(3) "Chickasaw Tribal Legislature" or "Legislature" means the Legislative Branch of the Chickasaw Nation Tribal Government as created and empowered by Articles V, VI, VII, VIII, and IX of the Constitution;

(4) "Chairperson" means that officer of the Legislature as defined in Article VII, Sections 1 and 2 of the Constitution;

(5) "Presiding Judge" means that officer of the Tribal Court as defined in Article XII, Section 4 of the Constitution;

(6) "Legislator" means a member of the Chickasaw Tribal Legislature;

(7) "Lieutenant Governor" means that officer of the Chickasaw Nation Tribal Government as defined in Article X and Article XI of the Constitution;

(8) "Governor" means that officer of the Chickasaw Nation Tribal Government as defined in Article X, Sections 1, 2, 3, 4, 5, and 6, and in Article XI, Sections 1, 2, 3, and 4 of the Constitution;

(9) "Judge" means an official of the Chickasaw Nation as defined in Article XII and XIII of the Constitution;

(10) "Prescribe" means to impose as a peremptory order, to give law or to direct.

SEC. 4. The basis for authority of this Act is Article VI, Section 1 of the Constitution, wherein the Legislature is granted the legislative authority of the Chickasaw Nation. In Article VII, Section 4, the Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation. In Article VII, Section 11, "The Tribal Legislature shall have the power to fix and prescribe salaries and allowances for all elected or appointed officials and employees of the Nation. The Tribal Legislature shall review said salaries and allowances every fourth year and shall increase or decrease as necessary."

The Chickasaw Tribal Legislature, with the adoption of this Act, hereby establishes the procedures whereby annual salaries for all elected officials of the Chickasaw Nation shall be reviewed and revised in accordance with Article VII, Section 11 of the Constitution.

SEC. 5. Judicial Department Salaries. The base salary for all Tribal Judges shall be \$350 per month, provided that the Judge elected to serve a term as Presiding Judge, shall receive an additional \$100 per month for the duration of the time in which he or she serves in that capacity.

SEC. 6. Legislative Department Salaries. The base salary for all Tribal Legislators shall not include any travel allowances, but travel reimbursement expenses shall be in accordance with legislative travel policies. The base salary for all Legislators shall be paid according to the following formula:

(A) Regular monthly salary shall be \$325, provided the Chairperson of the Legislature shall receive an additional amount

of \$150 per month for the duration of the time in which he or she serves in that capacity. The Secretary of the Legislature shall receive an additional amount of \$100 per month for the duration of the time in which he or she serves in that capacity;

(B) Attendance at one or more standing or special committee meetings shall entitle a Legislator to an additional amount of \$75 per month provided that, regardless of the number of standing or special committee meetings attended in any one-month period, payment shall not exceed \$75;

(C) Attendance at the regular monthly meeting of the Tribal Legislature shall entitle a Legislator to an additional amount of \$100 per month provided that, regardless of the number of Special Sessions of the Legislature which may be conducted in any one-month period, payment shall not exceed \$100. Payment shall not be made if a Legislator attends a Special Session but does not attend the Regular Monthly Session of the Legislature.

SEC. 7. Executive Department Salaries. The base salary of the Lieutenant Governor shall be \$47,500 annually, plus an annuity not to exceed the ceiling allowed by the Internal Revenue Service, to be matched with an equal amount deducted from the Lieutenant Governor's annual salary.

The base salary of the Governor shall be \$67,500 annually, plus an annuity not to exceed the ceiling amount allowed by the Internal Revenue Service, to be matched with an equal amount to be deducted from the Governor's annual salary.

SEC. 8. Reimbursable Costs. All salaries and benefits of all elected officials shall be paid from tribal funds; however, any

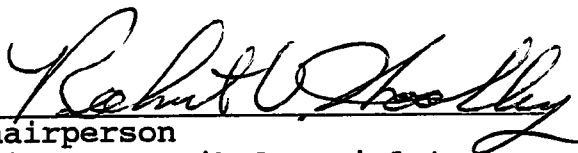
costs allowable under federal law to be reimbursed from federal sources for activities and/or actions taken by the tribal government or its employees, shall be billed on a monthly basis to the Tribe's indirect cost pool or, in such cases as are allowable and lawful, to the appropriate federal program, grant or contract. The Finance Department, under the supervision of the Governor, shall be responsible for compliance with this Section.

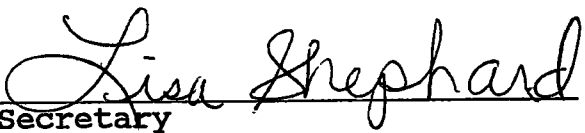
SEC. 9. Effective Date of Legislation. The effective date for this legislation shall be October 1, 1991. On that date, adjusted salaries as provided in this Act shall be effective.

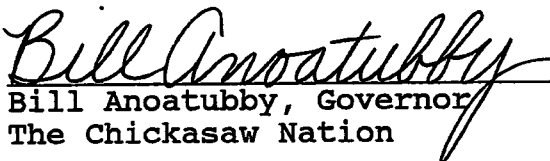
Sec. 10. Repeal of Prior Legislation. All prior legislation which is in conflict with this Act is hereby repealed.

Executed by the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on October 18, 1991, by a vote of 11 ayes, 2 nays, and 0 abstentions.

PASSED


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: **OCT 23 1991**